

subdivision (a) or (b).

(d) If authorized by any provision in Section 1701, 1702, 2110, or 2111 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable), as provided by that provision.

CCP § 416.10

An assistant manager of a branch office in Redding, California is likely not authorized to accept service of a Summons.

It is Plaintiff's responsibility to properly serve the matter on all named Defendants and file a valid Proof of Service of Summons within 60 days of the filing of the Complaint. CRC 3.110(b). "If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed." CRC 3.110(f). Plaintiff has not complied with CRC 3.110(b). However, as it appears that Plaintiff is making good faith efforts to effectuate service, the Court is not inclined to issue an Order to Show Cause Re: Monetary Sanctions at this time.

The Court notes that Specially Appearing Defendant CSAA Insurance Exchange has filed a Motion to Quash Service of Summons which is noticed for March 3, 2025 at 8:30 a.m. The matter is set for hearing on **Monday, March 3, 2025 at 9:00 a.m. in Department 63** for review regarding status of service and responsive pleadings. Plaintiff is ordered to comply with CRC 3.110.

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on December 16, 2024, to Plaintiffs Dean Piercy and Rusty Piercy, *in pro per*, for failure to timely serve pleadings on defendants pursuant to California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on March 25, 2024, and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response to the Order to Show Cause.

With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiffs. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal pursuant to Gov't Code Section 68608(b) for Plaintiffs' failure to timely serve Defendants per CRC 3.110(b) and failure to timely prosecute. The hearing on the Order to Show Cause Re: Dismissal is set for **Tuesday, April 1, 2025, at 8:30 a.m. in Department 63.** The clerk is instructed to prepare a separate Order to Show Cause Re: Dismissal. This matter is also calendared on **Tuesday, April 1, 2025, 2025 at 9:00 a.m. in Department 63** for review regarding status of service.

REDDING BUSINESS PARK, LLC VS. AMAZING FINDS, LLC, ET AL.

Case Number: CVCV19-0192492

Tentative Ruling on Motion for Reconsideration and/or Amend Judgment: Plaintiff Redding Business Park, LLC obtained a default judgment in the amount of \$47,073.45 on November 13, 2024. The judgment is comprised of \$28,080.00 in damages, \$16,848.00.00 in attorney's fees, and \$2,145.45 in costs. The Court did not award prejudgment interest based on Plaintiff's failure to accurately calculate interest. Plaintiff seeks reconsideration of this ruling and for prejudgment interest in the amount of \$15,444.00.

Plaintiff did not provide the legal basis for reconsideration in the moving papers. Motions for reconsideration are